



NLC INDIA LIMITED
OFFICE OF THE CHIEF GENERAL MANAGER/CONTRACTS
CORPORATE CONTRACTS DIVISION, CORPORATE OFFICE
BLOCK-1, NEYVELI – 607 801, TAMIL NADU
REGD. OFFICE: No.135, Periyar E.V.R. High Road, Kilpauk, Chennai,
Tamil Nadu 600010, India,



NOTICE INVITING BID (NIB)
DOMESTIC COMPETITIVE BIDDING

Tender No. CO CONTS/0041P/50 MW Solar- BOS/ RT /e-contrs/2023, Dt.30.12.2023

1.0 Invitation for Bid

Online Bids in English are invited by NLC India Limited, Neyveli for “BOS works for setting up of 50 MW Solar Power Project in the Mined-Out land in Mine-II/NLCIL with Operation & Maintenance for 3 years” in Two Part system (Part-I and Part-II) followed by Reverse Bidding. This Project is intended to be developed by NLC India Limited either in the name of NLC India Limited directly or through any of its subsidiary Company. Accordingly, this tender may be awarded directly by NLC India Limited or through any of its Subsidiary Company.

The details of the bid are given as below:

i)	Cost of tender document	:	Rs 10,000/- (Rupees Ten Thousand only) Non-refundable
ii)	Bid Guarantee		Rs. 41,67,000/- (Rupees Forty One Lakh Sixty Seven Thousand only).
iii)	Date of Pre-Bid Meeting	:	Not Applicable
iv)	Last Date & Time of submission of online Bids (Part-I & Part-II) and Physical Cover	:	10.01.2024 upto 14.30 hrs. (IST)
v)	Date & Time of opening of Part-I and Physical Cover	:	10.01.2024 at 15.00 hrs. (IST)
	Note: 1. The Bidders who have already participated in Tender No. CO CONTS/0016P/50 MW Solar/ BOS /e-contrs/2023, Dt.02.06.2023 floated earlier for “BOS works for setting up of 50 MW Solar Power Project in the Mined-Out land in Mine-II/NLCIL with three years of O&M” are exempted from furnishing cost of the tender document only. 2. The details of the EMD/Bid Guarantee shall be uploaded along with Part-I offer. In case of Bank Guarantee furnished towards Bid Guarantee, the original Bank Guarantee shall be scanned and uploaded along with Part-I offer.		

	3. The Physical cover containing the Bid Guarantee and other documents shall be submitted before Part-I opening. However, Physical cover containing the Bid Guarantee received within a maximum of 3 working days from the date of opening of Part-I shall be acceptable. The offers/bids of the bidders whose original Bank Guarantee towards bid security not received within the next 3 working days from the date of tender opening, shall not be considered for further evaluation. 4. For further details, please visit our website: www.nlcindia.in/www.procure.nlcindia.in or Central Public Procurement Portal (CPPP) of Government of India website: www.eprocure.gov.in or contact: The Chief General Manager/Contracts, Corporate Office, NLC India Ltd., Block-1, Neyveli– 607 801., Tamil Nadu. Phone: 04142 – 212308/ 218588. E-Mail ID: corporate.conts@nlcindia.in, gmconts@gmail.com
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1.1. Brief Scope of Work

The entire scope of work (excluding supply of Solar PV Modules) shall be carried out by the contractor on Lump-sum turnkey basis.

The scope of work includes the Design, Engineering, Site development, Manufacture, Inspection at supplier's works, Supply, Insurance, Transport, Storage, Erection, Installation, Testing & Commissioning of the total capacity of 50MW SPP and the Evacuation System up to the Delivery Point **except Supply of Solar PV Modules**.

The scope also includes necessary arrangements to enable SPD to Declare Commercial Operation (COD) after entire commissioning of SPP and conducting PG Test for 90 days. The scope also includes Operation & Maintenance (O&M) of entire SPP up to Delivery Point, at free of cost for the warranty period of 12 Months from COD (Commercial Operation Declaration) and Paid O&M for 3 years from the date of completion of the warranty period.

This Scope of Work is indicative only. Detailed Scope of Work is contained in Volume-II (Technical Specification).

2.0 Pre-Qualifying Requirements (PQR) for the Bidders

TECHNICAL CRITERIA:

Bidder shall meet the requirements either in clause 2.1 or 2.2 or 2.3 or 2.4 below:

2.1. Route-I:

The Bidder should have designed, supplied, erected/ supervised erection and commissioned/ supervised commissioning of Balance of System Package for Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 10 MWp or higher, out of which at least one plant should have been of 5 MWp or higher capacity. The reference plant of 5 MWp or higher capacity must have

been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening (i.e., Part-I Bid Opening).

2.2. Route-II:

The Bidder should be a developer of Solar Photo Voltaic (SPV) based grid connected power plant(s) of cumulative installed capacity of 10 MWp or higher, out of which at least one plant should have been of 5 MWp or higher capacity. The reference plant of 5 MWp or higher capacity must have been in successful operation for at least six (6) months prior to the date of techno-commercial bid opening (i.e., Part-I Bid Opening).

2.3. Route-III:

- 2.3.1. The Bidder should have executed in the last ten (10) years an industrial project either as developer or as EPC Contractor in the area of Power/ Solar Power/ Steel/ Oil/ Gas/ Petro chemicals/ Fertilizer/ Cement/ Coal mining including coal handling plant/ Rail/ Ports/ Bridges/ Any other Infrastructural projects, for a value of Rs. 17 Crores in a single project or single work and the same should be in successful operation for at least one (1) year prior to the date of techno- commercial bid opening (i.e., Part-I Bid Opening).

(AND)

- 2.3.2. The Bidder should have executed at least one (1) Electrical Sub-station of 33 kV or above voltage level, consisting of equipment such as 33kV or above voltage level circuit breakers and Power transformer, either as developer or as EPC Contractor which should be in successful operation for at least one (1) year prior to the date of techno-commercial bid opening (i.e., Part-I Bid Opening).

Note: The works referred at clause 2.3.1 (as applicable) & 2.3.2 can be in same or different projects.

2.4. Route-IV:

- 2.4.1 The bidder collaborates with a firm and together they fully meet the qualifying requirements stipulated in Route-I or Route-II or Route-III as the case may be. The Collaborator shall have minimum 26% equity in the Collaboration. The bidder and Collaborator should furnish a copy of valid Collaboration Agreement and Joint Deed of Undertaking in which the bidder and the Collaborator are jointly and severally liable for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations. The Collaboration will be allowed only between two entity.

(OR)

- 2.4.2 The Bidder can also be a leader of a consortium consisting of not more than two firms, such that together they meet the Qualifying Requirements stipulated in Route-I or Route-II or Route-III as the case may be. In case of bidding by a Consortium, the consortium partners shall necessarily identify a leader of the Consortium who will furnish the Consortium Agreement and the consortium partners shall execute a Joint Deed of Undertaking in which the partners are jointly and severally liable for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations. The consortium partner shall have minimum 26% equity in the consortium agreement.

(OR)

2.4.3 The Bidder can also be a Joint Venture Company, provided the qualifying requirement stipulated in Route-I or Route-II or Route-III as the case may be is met by any one or more promoters of the Joint Venture (JV) Company. The promoters of the JV Company on the basis of whom the JV Company gets qualified shall have minimum 26% equity in the JV Company. The bidder shall furnish a copy of valid Joint Venture Agreement and the promoters of the JV Company shall execute a Joint Deed of Undertaking in which the promoters are jointly and severally liable for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations.

(OR)

2.4.4 The bidder can also be a Group Company/Holding Company/Subsidiary Company of a firm meeting the requirement stipulated in Route-I or Route-II or Route-III. In such a case, Bidder shall furnish a Joint Deed of Undertaking(JDU) jointly executed by the bidder and the firm on whose strength the bidder is participating in the bid in which the bidder and the firm are jointly and severally liable for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations. In addition to the JDU, the bidder (Group/Holding/Subsidiary company) shall furnish a letter of undertaking from the firm on whose strength the bidder is participating in the bid for extending necessary support/expertise to the bidder for execution of the project in case of award.

2.5. FINANCIAL CRITERIA:

2.5.1. The Bidder, all Consortium Partners, Collaborators and all Individual Companies in the Group, shall have Positive Net Worth as per the latest audited financial statements individually. In case of the Bidder being a Joint Venture Company, each and every one of the promoters of the said Joint Venture Company shall have positive net worth, as per the latest audited financial statements.

2.5.2. Average Annual Turn Over of the Bidder (or) the combined Average Annual Turn Over of the Bidder and Collaborator (or) the combined Average Annual Turn Over of the Consortium partners (or) the combined Average Annual Turn Over of all the promoters of the Joint Venture Company (or) the combined Average Annual Turn Over of Bidder (Holding Company/ Subsidiary Company/ Group Company) as the case may be and the firm on whose strength the bidder is participating in the bid shall not be less than Rs. 17 Crores for the last three (3) consecutive financial years as on the original scheduled date of tender opening.

In case a Bidder does not satisfy the annual turnover criteria, stipulated above on its own, its Holding Company would be required to meet the stipulated turnover requirements as above, provided that the Net Worth of such Holding Company as on the last day of the preceding financial year is at least equal to or more than the paid-up share capital of the Holding Company. In such an event, the Bidder would be required to furnish along with its techno-commercial bid, a Letter of Undertaking from the Holding Company, supported by the Holding Company's Board Resolution, as per the format enclosed in the bid documents, pledging unconditional and irrevocable financial support for the execution of the Contract by the Bidder in case of award.

Note: In case the bidder is participating with the strength of its Group Company, for the purpose of Positive Net worth and Average Annual Turnover criteria, only the credentials of the bidder and the corresponding Group Company on whose strength the bidder is participating in the bid will alone be considered for evaluation.

3.0 DOCUMENTARY EVIDENCE:

3.1 The bidder shall attach documentary evidence to prove that the qualifying requirements mentioned in the clause 2.1 or 2.2 or 2.3 are met by him, along with the bid in the form of user certificate along with copy LOA/Work order/ Contract agreement together with full contact details for verification.

3.2 For QR clause No. (2.4), In case of participation by the Bidder with Collaborator(s) or the Consortium or the Joint Venture Company as the case may be, shall attach documentary evidence to prove that the qualifying requirements mentioned in Clause no. 2.1 or 2.2 or 2.3 above are met by him /them, along with the bid in the form of user certificate along with copy LOA/Work order / Contract agreement together with full contact details for verification and they should furnish a copy of valid Collaboration Agreement /valid Consortium Agreement / Joint Venture Agreement as applicable and also furnish Joint Deed of Undertaking along with the bid for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations.

3.3 For QR clause No. (2.3), the bidder shall attach documentary evidence to prove that the qualifying requirements mentioned in the clause 2.3.1 & 2.3.2 are met by him, along with the bid in the form of user certificate along with copy LOA/Work order / Contract agreement together with full contact details for verification.

3.4 For Financial QR, clause No. (2.5) Bidder shall furnish his audited profit and loss accounts and balance sheets for the last three (3) consecutive financial years as on the original scheduled date of tender opening. Wherever the bidder participates with Collaborator / Consortium / Joint Venture Company / Group Company/Holding Company/Subsidiary Company, profit and loss accounts and balance sheet for the last three (3) years consecutive financial years as on the original scheduled date of tender opening of their Collaborator / Consortium / Joint Venture Company / Group Company/Holding Company/Subsidiary Company shall also be furnished by the Bidder.

4.0 NOTES:

4.1 The Bidder or the Bidder with Collaborator or the Consortium or the Joint Venture Company or Group Company or Holding Company or Subsidiary Company as the case may be, shall attach documentary evidence to prove that the qualifying requirements mentioned in Clause no: 2.1 or 2.2 or 2.3 above are met by him / them, along with the bid in the form of user certificate along with copy LOA/Work order / Contract agreement together with full contact details for verification.

4.2 If bidder participates with Collaborator or Bidder as a Consortium or Bidder as a Joint Venture Company, they should furnish a copy of valid Collaboration Agreement /valid Consortium Agreement / Joint Venture Agreement as applicable and also furnish Joint

- Deed of Undertaking along with the bid for the services offered jointly and such agreement shall be valid till completion of all the contractual obligations.
- 4.3 The bidder or the bidder with collaborator or all individual firms in the Consortium or all promoters in the Joint Venture Company or Group Company or Holding Company or Subsidiary Company, as the case may be, shall furnish their audited profit and loss accounts and balance sheets for the last three (3) consecutive financial years.
- 4.4.1 The bidder cannot be a collaborator /consortium Partner/ Promoter of JV Company for other bidder(s) who are bidding for this tender.
- 4.4.2 Collaborator of a bidder cannot bid separately for the same tender.
- 4.4.3 In case of bid submission by a JV company, any of the promoters of that JV Company cannot bid separately for the same Tender.
- 4.4.4 In case of bid given by any Consortium, any Member(s) of that Consortium cannot bid separately for the same Tender.
- 4.4.5 In case of submission of Bids by both parties in the respective categories as above in 4.4.1or 4.4.2 or 4.4.3 or 4.4.4 the bid of the Bidder /Consortium / JV Company, as the case maybe, shall alone be considered.
- 4.5 The Bidder shall submit End User Certificate which is subject to verification for qualification. In case the bidder furnishes the end user certificates showing the experiences of their subsidiary or group companies or companies under the same Management, a confirmation from the firm which is having the experience in this regard is to be enclosed along with end user certificate. In case of end user certificates are furnished by the Bidder from the subsidiary or group companies or companies under the same Management, in addition to End User Confirmation, NLCIL reserves the right to inspect such installations where such certificates are obtained by the Bidder, only if the Bidder facilitates necessary inspection of such installation by the purchaser. The subsidiaries/group companies will submit an undertaking for extending necessary support/expertise to the bidder for execution of the project. NLCIL reserves the right to verify the credentials submitted by the bidders. However, cost pertaining to the purchaser's personnel for such inspection shall be borne by the purchaser.
- 4.6 NLCIL reserves the right to inspect the plant(s) referred to by the bidders as well as the original documents submitted in support of their claim to assess its veracity.
- 4.7 The bidder shall furnish major legal cases and their statutory liabilities if any.
- 4.8 The bidder shall also possess a valid certificate of registration under GST and the same should be furnished along with tender documents.
- 4.9 The bidder should have (obtained / holder of) the Permanent Account Number (PAN) under the income tax act and production of the documents relating to same are mandatory. To ensure that the bidder is not a defaulter in payment of income tax as evidenced by income tax assessment records for four consecutive years prior to bidding, it is mandatory for the bidder to provide the self-attested printout of the online IT Statement indicating zero tax liabilities for four consecutive years prior to bidding along with the tender documents. NLCIL reserves the right to send the same to the income tax department for verification. (In this regard, the bidder can seek the help of the auditor in case of any doubt or otherwise.)
- 4.10 In case of participation by the Bidder with Collaborator or the Consortium or the Joint Venture Company or Group Company or Holding Company or Subsidiary Company as

the case may be, the above clauses (4.7), (4.8) and (4.9) shall be applicable to the partners also.

- 4.11 The Project Consultant for this tender shall not be a Bidder for same tender.
- 4.12 If the Bids submitted by both the Main contractor and Sub contractor claiming the same experience, then the bid submitted by the Main Contractor alone shall be considered for further evaluation and the bid submitted by the Sub-Contractor shall be rejected.
- 4.12.1 If more than one bidder claim the same experience, then in such case NLCIL reserves the right to consider any credentials/ experience certificates submitted by any one of the bidders for any other earlier tender floated by NLCIL.
- 4.13 In case, if a bidder meets the technical QR but could not furnish his / their audited financial statement of three consecutive financial years preceding the last financial year for evaluating the average Annual turnover, due to the incorporation / formation of the bidder, with in a period of less than 3 years from the original scheduled date of tender opening, then, such bidder shall also be considered and the Average annual turnover of such bidder shall be arrived at as below:
- 4.13.1 If the bidder furnished audited financial statement (Profit & Loss Account and Balance Sheet) for the last financial year only, then such bidder's average Annual turnover shall be arrived at by dividing the Turnover of the last financial year by three.
- 4.13.2 If the bidder furnished audited financial statement (Profit & Loss Account and Balance Sheet) for the last two financial years only, then the bidder's average Annual turnover shall be arrived at by dividing the sum of Turnover of last two financial years by three.
- 4.14 In cases, **where audited financial statement (Profit & Loss Account and Balance Sheet)** for the last financial year immediately preceding the original schedule date of Tender opening are not available, a certificate would be required from the bidder stating that the Financial statement of the bidder are under audit as on the date of tender opening. In such case, the audited financial statement of three consecutive financial years preceding the last financial year shall be considered for evaluating the financial parameters.
- 4.15 "Balance of System (BoS) – The Balance of System refers to works related to minimum three of the following four areas in a solar PV plant:
- Erection of PV Modules
 - Civil works including Module Mounting Structure/Floaters.
 - Inverters (power Conditioning Units) and/or Inverter Transformers
 - Cables and Cabling Works

5.0 **OTHER CONDITIONS:**

- (a) The bidder shall furnish the following details also along with documents.
- (i) Contracts in hand / pending jobs and their status along with value.
 - (ii) Major Legal Cases and their Statutory Liabilities.
 - (iii) Recent Orders completed for Solar project with value.
- (b) The bidder shall be solely responsible and liable for all technical management and all other services required for completing the entire scope of work detailed in the tender specification.

- (c) In case, certificate(s) submitted by the bidders is found to be a forged one/bogus one; the bidder will not only be disqualified for the tender but also would be Suspended/Banned by NLCIL
- (d) Notwithstanding anything stated above, the Purchaser reserves the right to verify all statements/information submitted to confirm the bidder's claim on experience and to assess the capabilities and capacity of the bidder, to perform the contract, should the circumstances warrant such verification/ assessment in the overall interest of NLCIL.
- (e) NLCIL reserves the right to reject any or all bids or cancel/withdraw the Invitation for bids without assigning any reason whatsoever and in such case no bidder/intending bidder shall have any claim arising out of such action.

6.0 **PUBLIC PROCUREMENT POLICY (MAKE IN INDIA):**

6.1. The bidder shall take note of the following as per Department for Promotion of Industry and Internal Trade (formerly, Department of Industry Policy and Promotion), Ministry of Commerce and Industry, Government of India, Public Procurement (Preference to Make in India) Order 2017 – Revision: Dt: 16.09.2020 and further revisions, if any and confirm compliance to the requirements in this regard.

6.2. **DEFINITIONS:**

- (i) 'Local content' means the amount of value added in India which shall, unless otherwise prescribed by the Nodal Ministry, be the total value of the item procured (excluding net domestic indirect taxes) minus the value of imported content in the item (including all customs duties) as a proportion of the total value, in percent.
- (ii) 'Class –I local supplier', means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for 'Class-I local supplier' under order dt. 16.09.2020.
- (iii) 'Class-II local supplier' means a supplier or service provider, whose goods, services or works offered for procurement, meets the minimum local content as prescribed for 'Class-II local supplier' but less than that prescribed for 'Class-I local supplier' under order dt. 16.09.2020.
- (iv) 'Non-Local Supplier' means a supplier or service provider whose goods, services or works offered for procurement has local content less than that prescribed for 'Class-II local supplier' under order dt. 16.09.2020.
- (v) Minimum local content: The 'Local Content' requirement to categorize a supplier as 'Class-I Local Supplier' is equal or more than 50%. For 'Class – II Local Supplier', the 'Local Content' requirement is equal or more than 20%. For the items, for which Nodal Ministry Department has not prescribed higher minimum local content notification under the Order, it shall be 50% and 20% for Class – I local supplier / Class – II local supplier respectively.
- (vi) 'RL1' means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjusted in the evaluation process as per the tender or other procurement solicitation.

- (vii) 'Margin of purchase preference' means the maximum extent to which the price quoted by a 'Class-I local supplier' may be above the RL1 for the purpose of purchase preference.
- (viii) 'Nodal Ministry' means the Ministry or Department identified pursuant to this order in respect of a particular item of goods or services or works.
- (ix) 'Procuring entity' means a Ministry or department or attached or subordinate office of, or autonomous body controlled by the Government of India and includes Government companies as defined in the Companies Act.
- (x) 'Works' means all works as per Rule 130 of GFR-2017, and will also include 'turnkey works'

6.3. **ELIGIBILITY CLASS:** Only Class-I local suppliers are eligible to participate in this Tender.

6.4. **MARGIN OF PURCHASE PREFERENCE:** Not Applicable

6.5 **Verification of local content:**

- a. The 'Class-I local supplier' at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide self-certification that the item offered meets the local content requirement for 'Class-I local supplier', as the case may be. They shall also give details of the location(s) at which the local value addition is made.
- b. In cases of procurement for a value in excess of Rs.10 crores, the 'Class-I local supplier' shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.
- c. False declarations will be in breach of the Code of Integrity under Rule 175(1)(i)(h) of the General Financial Rules for which a bidder or its successors can be debarred for up to two years as per the Rule 151(iii) of the General Financial Rules along with such other actions as may be permissible under law.
- d. A supplier who has been debarred by any procuring entity for violation of this order shall not be eligible for preference under this Order for procurement by any other procuring entity for the duration of the debarment. The debarment for such other procuring entities shall take effect prospectively from the date on which it comes to the notice of other procurement entities.

6.6 **RECIPROCITY CLAUSE:**

- i. Entities of Countries which have been identified by the nodal Ministry / Department as not allowing Indian companies to participate in their Government procurement for any item related to that nodal Ministry shall not be allowed to participate in Government procurement in India for all items related to that nodal Ministry / Department, except for the list of items published by the Ministry / Department permitting their participation.
- ii. The term 'entity' of a country shall have the same meaning as under the FDI policy of DPIIT as amended from time to time.

6.7 Department of Expenditure Order (Public Procurement No.: 1) Order No.6/18/2019-PPD, Dt: 23.07.2020.

- I. Department of Expenditure, Ministry of Finance have issued Public Procurement No.: 4, Order No.: F.7/10/2021-PPD (1), Dt: 23.02.2023 in supersession to all of the above-mentioned Orders/clarifications, in which, the requirement of registration is stated as follows:
- i) *“Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the specified Competent Authority.*
 - ii) *Any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the specified Competent Authority.*
 - iii) *The requirement of registration for cases covered by paragraph (i) above has been applicable since 23.07.2020. The requirement of registration for bidders covered by paragraph (ii) above will be applicable for all procurements where tenders are issued/published after 01.04.2023.*
 - iv) *In tenders issued after 23.07.2020 or 01.04.2023, as the case may be, the provisions of requirement of registration of bidders and of other relevant provisions of this Order shall be incorporated in the tender conditions”.*

II. Definitions:

1. “Bidder” (including the term ‘tenderer’, ‘consultant’ or ‘vendor’ or ‘service provider’ in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
2. “Tender” for the purpose of the Order will include other forms of procurement, except where the context requires otherwise.
3. “Transfer of Technology” means dissemination and transfer of all forms of commercially usable knowledge such as transfer of know-how, skills, technical expertise, designs, processes and procedures, trade secrets, which enables the acquirer of such technology to perform activities using the transferred technology independently. (Matters of interpretation of this term shall be referred to the Registration Committee constituted by the Department for Promotion of

Industry and Internal Trade, and the interpretation of the Committee shall be final.)

4. "Specified Transfer of Technology" means a transfer of technology in the sectors and/ or technologies, specified in paragraph 15, occurring on or after 23.07.2020.

III. "Bidder (or entity) from a country which shares a land border with India" for the purpose of this Order means:

- a. An entity incorporated, established or registered in such a country; or
- b. A subsidiary of an entity incorporated, established or registered in such a country; or
- c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
- d. An entity whose beneficial owner is situated in such a country; or
- e. An Indian (or other) agent of such an entity; or
- f. A natural person who is a citizen of such a country; or
- g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

IV. The beneficial owner for the purpose of (iii) above will be as under:

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other-means

Explanation –

- a. "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company.
 - b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements.
2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership.
 3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together; or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals.

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official.
 5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
- V. An Agent is a person employed to do any act for another, or to represent another in dealings with third persons.
- Note:
- i. A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent for the purpose of this Order.
 - ii. However, a bidder who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.
- VI. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.
- VII. Bidder is permitted to procure raw material, components, sub-assemblies etc. from the vendors from countries which shares a land border with India. Such vendors will not be required to be registered with the Competent Authority, as it is not regarded as “sub-contracting”.
- ii. However, in case a bidder has proposed to supply finished goods procured directly/indirectly from the vendors from the countries sharing land border with India, such vendor will be required to be registered with the Competent Authority.
- VIII. Procurement of spare parts and other essential service support like Annual Maintenance Contract (AMC)/Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) or their authorized agents, shall be exempted from the requirement of registration as mandated under Rule 144(xi) of GFRs 2017 and Public Procurement Orders issued in this regard.

6.7.1 Model Certificate

“I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by Competent Authority shall be attached].

6.7.2 Model Certificate for Works involving possibility of sub-contracting

“I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached].

The above said order will not apply to bidders from those countries (even if sharing a land border with India) to which, Govt. of India has extended lines of credit or in which, and the Govt. of India is engaged in development projects (Order Public Procurement No.2).

Any bidder (including its Collaborator/Associate/JDU Partner/JV partner /Consortium Member / Assignee, wherever applicable) from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. Such registration should be valid for the entire period of bid validity or any extension thereof. However, in case the validity period of registration is less than bid validity period, the Bidder shall be required to submit the extension of the validity period of registration before the opening of price bids, failing which the bid is liable for rejection.

6.8 Certification for testing:

Ministry of Power issued following directions vide Order 25-11/6/2018-PG, dt.02.07.2020, Order 12/34/2020-T&R, dt.08.06.2021 and its amendments to protect the security, integrity and reliability of the strategically important and critical Power Supply System & Network in the country and the bidder has to comply with the same:

- (1) All equipment, components, and parts imported for use in the power Supply System and Network shall be tested in the country to check for any kind of embedded malware/ roform/cyber threat and for adherence to Indian Standards.
- (2) All such testing shall be done in certified laboratories as designated by the Ministry of Power (MoP).
- (3) Any import of equipment components/parts from “prior reference” countries as specified or by persons owned by, controlled by, or subject to the jurisdiction or the directions of these “prior reference” countries will require prior permission of the Government of India.
- (4) Where the equipment/ components/ parts are imported from “prior reference” countries, with special permission, the protocol for testing in certified and designated laboratories shall be approved by the Ministry of Power (MoP). This order shall apply to any item imported for end use or to be used as a component, or as a part in manufacturing, assembling of any equipment or to be used in power supply system or any activity directly or indirectly related to power supply system.

- 6.9 MOP vide Order Dt. 16.11.2021, based on DPIIT Order Dt. 16.09.2020, issued circular for Purchase Preference (linked with local content) in respect of Power Sector, which is in supersession to all the earlier Orders issued by MOP in this regard and bidder is requested to confirm compliance of the same.
- 6.10 Bidder is also requested to confirm the compliance of MNRE vide order No F. No. 283/22/2019-GRID SOLAR Dt 23.09.2020 with regard to the Class-I local supplier.

Note:

The Bidders are requested to note that the bids will be evaluated taking into consideration of compliance to the orders mentioned in the above Clauses.

7.0 Time Schedule:

The time schedule for Commercial Operation Declaration (COD) of the entire capacity of the project is 15 months from the date of LOA.

8.0 Bid Guarantee:

- i. Bidder is required to submit Bid guarantee for a value Rs. 41,67,000/- (Rupees Forty One Lakh and Sixty Seven Thousand only) along with the Bid (Part-I) in the form and manner as described in the instructions to Bidders.
- ii. The Bid Guarantee shall be either in the form of (a) Bank Guarantee valid for 300 days from the date of opening of Part-I bids **or** (b) demand draft for an equivalent amount drawn in favour of NLC India Limited, payable at Neyveli **or** (c) NEFT/RTGS mode to NLCIL's Account No. 3062 3095 200 Beneficiary Name: NLC India Ltd., in State Bank of India, Branch: Neyveli Main (IFS Code No. SBIN0000958, SWIFT code: SBININBB457) and the remittance details with UTR No./DD shall be enclosed with the bid in Part I failing which the offer is liable for rejection.

The bidder is to note that the Banks commission charges will be to the account of the bidder and the net amount transferred to NLCIL's account shall be equal to the Bid Guarantee value as stipulated in the Tender. No other mode of payment will be accepted.

- iii. Structured Financial Messaging System (SFMS): Bank Guarantee submitted in Physical mode, including EMD/ Bid Guarantee which cannot be verifiable through Structured Financial Messaging System (SFMS) SFMS will be rejected summarily. Hence, the bidder is requested to attach the proof for the issuance of bid guarantee through SFMS given by banker.
- iv. The bid shall be treated as non-responsive offer and will not be considered for further evaluation, in case –
 - the bid is submitted without Bid Guarantee and Cost of Tender document
 - the bid is submitted with Xerox copy of the Bid Guarantee
 - the bid guarantee and Tender Cost is of lesser value or any adjustment sought for.

9.0 Bid Submission & Opening:

(i) All bids, including all attachments/enclosures shall be prepared in English Language only and submit the same. The bidder shall submit the offer for full scope of work indicated in the Tender Specification.

Part – I & Part – II of the Bids are to be submitted through online. Physical cover containing the documents in physical form as listed in S.No 3 of the table below shall be submitted within the last date and time of receipt of Bids.

(ii) The Offers/Bids are to be obtained in two Part system as detailed below: -

1.	Part I	:	PART – I (through online) Covering Letter, Proof for remittance of Cost of tender document, Bid Guarantee (As per Annexure – A), Form of Bid (Part-I) (As per Annexure – B), Affidavit (as per Annexure-D), Power of Attorney, Techno-Commercial details, Integrity Pact (As per Annexure-E), Collaboration / Consortium Agreement, if applicable, Joint Deed of Undertaking (JDU) (as per Annexure-F), if applicable, Minimum local content Certificates from the bidder and auditor and all other details as given in this Volume.
2.	Part II	:	Part-II (Price) (through online) (i) Duly filled in Form of bid (Part-II) as per Annexure – C. (ii) Price Bid with completely filled in Schedule of Prices (Schedule of Prices–F1 Table 1) along with annexures for Volume – IA.
3.	Physical Cover	:	Bidders are requested to furnish the following documents in Original in a sealed Physical cover within the last date and time of receipt of Bids: 1. Proof of remittance of cost of tender documents 2. Bid Guarantee (As per Annexure-A). 3. Power of Attorney / Authorization with the seal of the company in favour of the person signing the Bid. 4. Integrity Pact duly filled up and signed in all pages(as per Annexure-E). 5. Joint Deed of Undertaking, if applicable (as per Annexure-F). 6. Undertaking by Group/Holding/Subsidiary Company, if applicable 7. Collaboration / Consortium agreement, if applicable.

(iii) Bidders are requested to submit their Physical Cover containing the documents in physical form as listed in S.No 3 of the table above shall be submitted within the last date and time of receipt of Bids at the Office of the Chief General Manager / Contracts, Corporate Office, Block-1, NLC India Limited, Nevyeli-607801, Tamil Nadu, India.

- (iv) Any Bid submitted without Cost of tender document and Bid Guarantee or submitted with part amount, or any request to adjust it in any other bills etc., or seeking exemption shall be treated as non-responsive offer and their offer will not be considered for further evaluation
- (v) Part-I and Physical cover shall be opened on the scheduled date of tender opening. The offers/bids of the bidders who satisfy the conditions of Bid Guarantee and Cost of tender document shall be considered for further evaluation on QR aspects.

10.0 Special Note and Information Regarding the Tender

- (i) For downloading tender document, please visit our website: www.nlcindia.in or Central Public Procurement Portal (CPPP) of Government of India, Website: www.eprocure.gov.in or NeAT Portal: <https://procure.nlcindia.in>
- (ii) The Cost of tender document may be remitted through RTGS / NEFT mode or e-payment and the UTR No. may be indicated in the Part-I Bid.

Beneficiary Name	: NLC India Limited, Neyveli
Account No.	: 30623095200
Nature of Account	: Current A/c
Bank	: State Bank of India
Branch	: Neyveli Main
IFSC Code	: SBIN0000958
SWIFT Code	: SBININBB457
E-mail	: sbi.00958@sbi.co.in

The bidder is to note that the Bank commission charges will be to the account of the bidder and the net amount transferred to NLCIL's account shall be equal to the cost of the tender document. The qualification of bidder is subject to receipt of cost of the tender document stipulated in the tender. No other mode of payment will be accepted.

- (iii) Amendments/ Errata/ Clarifications if any, shall be issued as Corrigendum for the tender and shall form part and parcel of the tender documents. Corrigendum will be displayed in NLCIL's Website www.nlcindia.in / <https://procure.nlcindia.in> of NLCIL NeAT Portal/Central Public Procurement Portal (CPPP) of Government of India, (www.eprocure.gov.in). Bidders are requested to visit NLCIL's website or Central Public Procurement Portal. NLCIL will not be responsible if any bidder omits to notice any Corrigendum. Corrigendum will be numbered consecutively. All the corrigendum issued are forming part and parcel of the tender documents.
- (iv) All other terms and conditions along with the technical specifications, time schedule, validity of bid and Instructions to bidders, etc., are contained in the tender specification.
- (v) NLCIL reserves the right to accept/reject any bid or all bids received at its discretion without assigning any reason whatsoever thereof. No further correspondence shall be entertained in this regard.
- (vi) The Bid shall be made in Indian Rupees only and all payments for the entire scope will be made in Indian Rupees.

- (vii) Bids submitted by fax or E-Mail or other than the prescribed mode of submission as per the tender shall be rejected.
- (viii) NLCIL takes no responsibility for delay, loss of receiving the Bid documents or any letter sent by the Bidder.
- (ix) The Tender specifications are meant for the exclusive purpose of bidding against the subject package and shall not be transferred, reproduced or otherwise used for purposes other than for which these are specifically issued.
- (x) Any bidder, who is placed under Suspension/Banning by NLCIL will not be allowed to participate in any tender issued on or after the date of suspension/banning order and also if that bidder has already participated in any tender which is under process, their bid will not be considered for further processing.
- (xi) Bidders are advised to quote the most competitive price in the initial bid as well as in the Reverse Auction (RA), wherever applicable, since there will not be post tendering negotiations with the lowest bidder.
- (xii) Bidders are permitted to furnish clarification/ deviation, if any during pre-bid stage only. Deviation requests of the bidders, only upto the pre-bid stage which are acceptable to NLCIL will be communicated to the bidders for consideration.
- (xiii) Bidders are not allowed to take any deviations in their bid. Deviations listed elsewhere in the Bid shall not be considered.
- (xiv) Bids without cost of tender document and Bid Guarantee will be summarily rejected.
- (xv) In case of extension of Bid submission date, the pre-qualification requirements met by the bidder as on the date of techno-commercial Bid opening (i.e. part-I Bid opening) shall be taken into account for technical criteria of PQR and the pre-qualification requirements met by the bidder as on original schedule date of tender opening, shall alone be taken into account for the financial criteria.
- (xvi) Performance certificate/Work Completion Certificate issued by Consultant will not be considered.
- (xvii) The Bidders who have already participated in Tender No. CO CONTS/0016P/50 MW Solar/ BOS /e-contrs/2023, Dt.02.06.2023 floated earlier for "BOS works for setting up of 50 MW Solar Power Project in the Mined-Out land in Mine-II/NLCIL with three years of O&M" are exempted from furnishing cost of the tender document only.



CHIEF GENERAL MANAGER/ CONTRACTS
NLC INDIA LIMITED